

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY,
QUETTA

PRC APPEAL NO. 51 / 2025

M/s Sher Shah and Brothers
Through its Owner
Mr. Sher Shah S/o Ali shah
CNIC No. 565035133850-5

...Appellant

VERSUS

1. Government of Baluchistan
Through its chief Secretary office, at Civil Secretariat Zarghoon road , Quetta
2. Communication Work PP&H Department through its Secretary office, at Civil Secretariat Zarghoon Road, Quetta
3. Executive Engineer (Building), CW, PP & H Department District Zhob
4. Grievance Redressal Committee through its Chairman Division Zhob
5. M/S Zubair khan Sherani Construction Company through Respondent No 3
6. Mr. Jandad khan Sub Divisional Officer CW, PP&H District Zhob
7. Mr. Abdul Jaleel Executive Engineer Irrigation Department District Zhob

...Respondents

Quorum

1. Mr. Habib ur Rehman Jamot.....Chairman PRC
2. Mr. Mubashir Ali khan (FCIPS).....Member
3. Engr Junaid shahMember
4. Engr Muhammad Ayub Nasir.....Technical Member
5. Mr. Abdul Hayee AdvocatePrivate Member

DECISION

BRIEF FACTS

1. The Appellant, M/s Sher Shah and Brothers Construction Company, is a PEC Category C-2 registered contractor. It has challenged its disqualification in the

technical evaluation for Tender S.E. No. 252610894653, pertaining to the project titled "Construction of 1 ADD room and B/W at GBPS Sardar Meer Adam Murgha, 2 classrooms at GBHS Killi and B/W Killi Zakrazai, Missing facilities at other schools, District Zhob", with an Approved Estimated Cost of PKR 35,645,525.

2. The tender, comprising six distinct works, was invited via PRQ No. 1923 dated 15 October 2025. The Appellant participated in the work at Serial No. 6.
3. The technical bids were opened on 06 November 2025. The Technical Evaluation Report, uploaded on 13 November 2025 and finalized on 27 November 2025, declared only three bidders responsive. The Appellant was specifically disqualified for "non-submission of No Demand Certificate / FBR compliance."
4. The Appellant's core contention is that he has provided such a certificate and his disqualification on such a factor which is not a mandatory criterion under the BPP Rules or Standard Bidding Documents constitutes an unnecessary restriction on competition. Such requirements are prohibited under BPPRA guidelines aimed at eliminating superfluous documentation.
5. The Appellant further argues that, under the Least Cost Selection Method adopted for this procurement, each bid must be evaluated strictly against the criteria expressly stated in the bidding documents.
6. The Appellant maintains that, in any event, the Procuring Agency failed to provide any opportunity to clarify or submit the alleged missing document before disqualification, violating principles of natural justice and fair administrative action.
7. The financial bids were opened on 27 November 2025, wherein Respondent No. 5 was declared the successful bidder.
8. Aggrieved, the Appellant filed a complaint with the Grievance Redressal Committee (CRC) on 28 November 2025. The CRC failed to decide the complaint within the statutory 18-day period, prompting the present appeal under Rule 56-A of the BPP Rules.
9. Respondent No. 3 filed a written reply, denying all allegations and asserting that the evaluation was conducted strictly in accordance with the applicable rules and bidding documents.
10. However, when questioned by the Committee on the legal basis for requiring a No Demand Certificate issued by the FBR, the Procuring Agency's representatives conceded that this requirement was not originally stated in the eligibility criteria of the bidding document and a corrigendum was subsequently issued to introduce this requirement.
11. The question for determination arises, whether disqualification of the Appellant on the basis of No Demand Certificate issued by the FBR was lawful under the BPPRA Rules, 2014?

FINDINGS OF THE COMMITTEE

1. The Committee has examined the record, the bidding documents, the corrigendum, and the applicable law. The legal framework governing this dispute is clear: Rules 10, 13 and 37 of the BPP Rules, 2014, mandate transparency, fairness, and non-discrimination, and expressly prohibit procuring agencies from imposing arbitrary or restrictive conditions that stifle competition.
2. The central issue is the requirement of a "No Demand Certificate issued by the FBR" The record conclusively shows that this requirement was not included in the original bidding documents. It was introduced subsequently via a corrigendum. The Procuring Agency's representatives, when questioned, could not justify this addition against the BPPRA's clear guidelines discouraging irrelevant documentation that restricts competition without enhancing quality.
3. The Procuring Agency's defense is self-contradictory and untenable. First, it claimed the requirement was lawful, yet admitted it was added via corrigendum a tactic that inherently restricts competition by altering the rules after bids are invited. Second, it asserted the Appellant's grievance to the CRC was time-barred. This claim is factually false. The complete evaluation report was uploaded on 27 November 2025; the Appellant filed its grievance on 28 November 2025, which was well within the statutory period. The CRC's dismissal on grounds of limitation was therefore erroneous.
4. Most critically, the Committee notes from the record that the Appellant had in fact attached a No Demand Certificate issued by the very same Executive Engineer (Respondent No. 3). This renders the disqualification not only procedurally flawed but substantively unjust.
5. In view of the foregoing, the Committee finds that:
 - (a) The imposition of the No Demand Certificate requirement via corrigendum was an impermissible, restrictive practice that violates the BPP Rules' core principles.
 - (b) The Appellant's disqualification on this ground was arbitrary, unlawful, and without legal basis.
 - (c) Consequently, the Appellant was wrongly excluded from the financial competition.
12. This Committee is therefore of the view that the impugned evaluation suffers from procedural illegality, arbitrariness and non-compliance of procurement rules.

DECISION

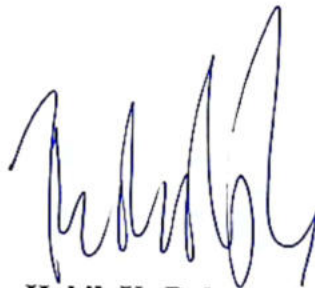
For the reasons recorded above, the Appeal is ALLOWED. The Technical Evaluation Report dated 15-10-2025 pertaining to TSE No. 252610894653, is hereby SET ASIDE. The Procuring Agency is DIRECTED as follows:

- (a) To re-evaluate the technical bid of the Appellant strictly in accordance with the Balochistan Public Procurement Legal Framework, excluding the unlawfully imposed requirement.
- (b) To complete this re-evaluation and issue a fresh, Evaluation Report within fifteen (15) days from the date of this order.

A certified copy of this order shall be communicated to the Appellant, all Respondents, and the Secretary of the concerned Administrative Department for information and to ensure strict compliance.

Ordered accordingly.

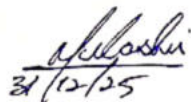
Announced on this 31st day of December 2025.



Habib Ur Rehman Jamot

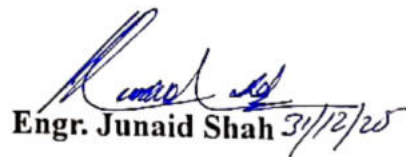
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

31/12/2025



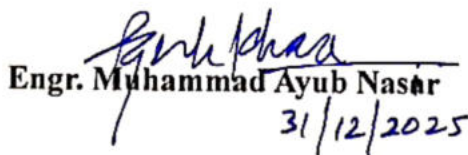
Mubashir Ali Khan (FCIPS)

Member
Procurement Review Committee
BPPRA



Engr. Junaid Shah

Member
Procurement Review Committee
BPPRA



Engr. Muhammad Ayub Nasir

31/12/2025

Member
Procurement Review Committee
BPPRA

Abdul Hayee Advocate



Member
Procurement Review Committee
BPPRA